Surajit Banik vs The Directorate Of Enforcement & Anr on 25 August, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(CRL) 1920/2022 & CRL.M.A. 16722/2022, CRL.M.A. 16723/2022, CRL.M.A. 16727/2022
SURAJIT BANIK .....
Through: Mr. Vikash Pahwa, Sr. Adv. wit
MF Philip, Ms. Raavi Sharma, Advs.
versus
THE DIRECTORATE OF ENFORCEMENT & ANR.
.....
Through: Mr. Anupam S. Sharma, Ld. SPP
Mr. Prakarsh Airan, Mr. Nishant Chaudha
Harpreet Kalsi, Advs. with Mr. Dileep S
ED
CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 25.08.2022

1. This is a petition filed seeking quashing and setting aside of the impugned summon bearing No. PMLA/ SUMMON/ STF/ 2022/ 397 dated 17.08.2022. The petitioner also seeks protection from coercive steps against the petitioner.

2. It is stated in the present petition that the petitioner, in the present case, is an Investigating Officer in a case registered at PS Kalighat, Kolkata DD Case No. 33 dated 05.04.2021 under Section 171G/ 466/ 469/ 474/ 500/ 501/ 504/ 34/ 120B IPC.

3. The petitioner states that as a counter-blast, an FIR No. 48/2022 dated 20.04.2022 has been registered by PS Crime Branch, Delhi Police under Section 465/466/471/474/120B IPC on a complaint made by Mr. Kapil Raj (an official of Enforcement Directorate).

4. The facts which led to filing of the FIR No. 48/2022 were that the petitioner wanted to investigate an audio clipping in FIR, and for that, he required the voice samples of Mr. Kapil Raj. The prayer made was accepted by the Chief Judicial Magistrate Court, Alipore on 28.03.2022. The petitioner obtained a copy of the order dated 28.03.2022 from the General Record Office (GRO) for the purposes of issuing a notice to Mr. Kapil Raj. The operative portion of the order dated 28.03.2022 obtained from the GRO is as follows:-

> "...The investigating officer is permitted to take the voice sample of Kapil Raj on a time and date that may be mutually agreed upon by Kapil Raj and the Investigating Officer with the permission of the Ld. Judicial Magistrate, 09th Court Alipore and with the assistance of Technical expert from CFSL, Kolkata excluding all possibilities of collusion..."

5. Subsequent to the said order, the petitioner issued notice to Mr. Kapil Raj through email, and annexed a scanned copy of the order. Mr. Kapil Raj did not appear on the said date and his Advocate sought a convenient time for him to appear.

6. As per the petitioner, subsequently, he found that there was a typographical error in the order dated 28.03.2022 obtained from the GRO, and important line, namely, "of the first class, provided Kapil Raj consents to give the same out of his own free will. The entire process shall be conducted in presence of..." was not recorded in the copy of the order obtained from the GRO which was forwarded to Mr. Kapil Raj.

7. Mr. Kapil Raj submitted a complaint dated 19.04.2022 before the Crime Branch, Delhi on which the FIR No. 48/2022 under Section 465/466/471/474/120-B IPC was registered on 20.04.2022 for committing forgery and fabrication of the order dated 28.03.2022 passed by the learned Magistrate, Alipore Court.

8. On 26.04.2022, the petitioner moved an application for clarification before the concerned Magistrate and pointed out the error made by the copy supplied by the GRO.

9. On 27.04.2022, the Chief Judicial Magistrate, Alipore, who had passed the order of 28.03.2022, conducted an inquiry and held that there was no malice/ill-intention or any deliberate omission made by the GRO by providing the copy of the order dated 28.03.2022 to the petitioner herein.

10. The operative portion of the order dated 28.03.2022, so far as it relates to direction to collect voice sample of the ED official has been stayed by the Calcutta High Court in CRR 1444/2022.

11. It is stated by Mr. Pahwa, learned senior counsel appearing for the petitioner that the judicial order dated 27.04.2022 records that there is no malafide or ill-intention on behalf of the petitioner. He further draws my attention to the fact that the order also records that the erroneous version of the order does not defeat the scope and true purpose of the order and the basic structure of the order has remained unchanged.

12. On 19.04.2022, the ED official, Mr. Kapil Raj filed a complaint with the Delhi Crime Branch alleging that the petitioner maliciously fabricated and forged the order in order to cause damage and injury to the complainant and other officials of the ED.

13. It is stated by Mr. Kapil Raj in the complaint that the petitioner dishonestly made the forged documents with the intention of causing Mr. Kapil Raj to believe that the said document was made, signed and executed by the learned Chief Judicial Magistrate.

14. It is stated that the FIR is predicated on these allegations, and an ECIR has been registered based on the FIR No. 48/2022. Pursuant to the registration of the ECIR No 7/STF/2022, the petitioner has received a notice dated 17.08.2022 under Section 50(2) and 50(3) of the PMLA, 2002. The same is challenged herein.

15. Mr. Pahwa, learned senior counsel appearing for the petitioner, states that a bare perusal of the FIR, on the basis of which the ECIR has been registered, does not show any proceeds of crime attributable to the petitioner. The only allegation against the petitioner is regarding forgery and fabrication of a Court order and that does not make him the beneficiary of proceeds of crime. He further states that the FIR itself shows only a possibility of involvement of the petitioner.

16. Per contra, Mr. Sharma, learned Special counsel for ED has stated that the offence under Section 471 and 120B IPC is a scheduled offence under the PMLA. He relies on „Neeharika Infrastructure Pvt. Ltd. vs. State of Maharashtra and Ors. [AIR OnLine (2021) SC 192] in Criminal Appeal No. 330/2021, and more particularly, para 23 (xvi) to state that the High Court should not interfere and grant interim order staying the investigation during pendency of quashing petition and should relegate the parties to provisions of anticipatory bail under Section 438 Cr.PC.

> "xvi) The aforesaid parameters would be applicable and/or the aforesaid aspects are required to be considered by the High Court while passing an interim order in a quashing petition in exercise of powers under Section 482 Cr.P.C. and/or under Article 226 of the Constitution of India. However, an interim order of stay of investigation during the pendency of the quashing petition can be passed with circumspection. Such an interim order should not require to be passed routinely, casually and/ or mechanically. Normally, when the investigation is in progress and the facts are hazy and the entire evidence/material is not before the High Court, the High Court should restrain itself from passing the interim order of not to arrest or "no coercive steps to be adopted and the accused should be relegated to apply for anticipatory bail under Section 438 Cr.PC. before the competent court. The High Court shall not and as such is not justified in passing the order of not to arrest and/or "no coercive steps" either during the investigation or till the investigation is completed and/or till the final report/ chargesheet is filed under Section 173 Cr.PC., while dismissing/disposing of the quashing petition under Section 482 Cr.P.C. and/or under Article 226 of the Constitution of India."

17. He further draws my attention to another judgment of the Hon ble Supreme Court in „Siddharth Mukesh Bhandari vs. The State of Gujarat & Anr. [2022 SC OnLine SC 592] in Criminal Appeal No. 1044/2022 to state that the grant of stay or any relief under Section 482 Cr.PC should only be in the rarest of rare cases, merely giving reasons for passing interim protection will not suffice.

18. The power to quash criminal proceedings and investigation is exercised very sparingly with circumspection and in the rarest of rare cases. As in clear from the judicial precedents stated above the courts should not interfere with the investigation or during the investigation except in exceptional cases where non-inference will result in a miscarriage of justice. Keeping this mind, I

now proceed to ascertain whether Petitioner has made out any extraordinary case.

19. In the present case, it will be fit to reproduce the relevant portion of the FIR No. 48/2022, on the basis of which the ECIR has been registered. The relevant paragraphs of the FIR No. 48/2022 read as follows:-

> "9. This forged/fabricated order was again received by the undersigned on his official e-mail id :- jdhiu2ed@gov.in from email id :- antifraud-dd@kolkatapolice.gov.in at Delhi on date 04.04.2022 at 7:53 PM along with memo no. 152 which is the official email id used by Shri Surjit Banik, SI (Anti-Fraud Section, Detective Department, Kolkata Police) (Annexure-E). It is pertinent to mention that the said forged/fabricated order was again forwarded by SI Surjit Banik to the undersigned on WhatsApp too from mobile NO. 9732062040 to the mobile NO. 9930801585 of undersigned on 07.04.22 at 2:02 PM. In the said WhatsApp communication, the sender identified himself as Surjit Banik, SI of Kolkata Police, Anti-Fraud Section, Detective Department, Lal Bazar, Kolkata. (Annexure - F).
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> 10. Thus, in the above-mentioned events, it is brought to your knowledge that Shri Surjit Banik (Anti-Fraud Section, Detective Department, Kolkata Police) forged/tampered the order of Ld. Chief Judicial Magistrate and the aforesaid document was forged to cause damage or injury to the complainant and other officers of ED, and also with the intent to commit the fraud. The accused have dishonestly or fraudulently made the forged/fabricated document with the intention of causing it to believe that such document was made signed and executed by Ld. Chief Judicial Magistrate knowing fully well that it was not made signed and executed by the Ld. Chief Judicial Magistrate.
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> 11. After forging the aforesaid document, the accused has used it as a genuine document and sent to the undersigned deputed as Joint Director (HIU-II) having office at Pravartan Bhavan, Dr. APJ Abdul Kalam Road, New Delhi - 110011 on official e-mail. The said email was received and accessed by the undersigned in his office at New Delhi.
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> 12. The proceedings initiated by the Kolkata Police against the ED officials including the making of communication of the forged documents as above is with the intention to see that the Proceed of Crime (PoC) in the FIR No. RC0102020A0022 dated 27.11.2020 do not surface and attempts are being made at the behest of the beneficiaries of the PoC in the said FIR, so that the whereabouts of the PoC are concealed and not detected by the ED. Therefore, I have reasons to believe that the beneficiaries of the PoC and police officers investigating FIR No. 33/2021 dated 05.04.2021 lodged at Kalighat Police Station (Kolkata) have entered into a criminal conspiracy and are illegally protecting the beneficiaries of PoC by making false and baseless allegations against the ED officers involved on conducting PMLA investigation of the case. The possibility of involvement of the IO, other officers of

> Kolkata Police investigating the FIR No. 33/2021 dated 05.04.2021 lodged at Kalighat Police Station (Kolkata) and the beneficiaries of PoC in FIR No. RC0102020A0022 cannot be ruled out and thorough investigation is required to be carried out in this matter." (emphasis supplied)

20. As is clear from a plain reading of the above there are no allegations of the petitioner having received proceeds of crime or dealing with the same. The allegation against the petitioner is limited to forgery and fabrication of the order dated 28.03.2022 for malafide reasons. Even para 12 of the FIR No. 48/2022 states that there is possibility of the involvement of the I.O.

21. Even the conclusion in the judgment „Vijay Madanlan Choudhary vs. Union of India and Others [(2022) SCC OnLine SC 929] states that the person who is directly/ indirectly involved in the process/ activity connected with the POC must be guilty of money laundering. The relevant paragraph reads as under:-

> "467 (v)(d). The offence under Section 3 of the 2002 Act is dependent on illegal gain of property as a result of criminal activity relating to a scheduled offence. It is concerning the process or activity connected with such property, which constitutes the offence of money-laundering. The Authorities under the 2002 Act cannot prosecute any person on notional basis or on the assumption that a scheduled offence has been committed, unless it is so registered with the jurisdictional police and/or pending enquiry/trial including by way of criminal complaint before the competent forum. If the person is finally discharged/ acquitted of the scheduled offence or the criminal case against him is quashed by the Court of competent jurisdiction, there can be no offence of money- laundering against him or any one claiming such property being the property linked to stated scheduled offence through him." (emphasis supplied)

22. The abovesaid paragraph clearly state that the authorities cannot prosecute any person on „notional basis or on the assumption that a scheduled offence has been committed.

23. I am of the view that in the present case, prima facie no offence involving money laundering is made out. There are no allegations of money laundering as the FIR on the basis of which the Respondent has initiated investigation under the PMLA does not mention or allege any money laundering, generation of proceeds of crime or any activity related to proceeds of crime ECIR does not show any proceeds of crime attributable to the petitioner. There are no allegations of illegal gain of property, no allegations of money laundering or even a potential money trail, and hence, there is a complete absence of any basis for apprehension, factual or otherwise, for summoning the Petitioner under Section 50, PMLA. There is no allegation concerning the process or activity connected with such property which constitutes the offence of money-laundering.

24. In the present circumstances, the non-interference by the court would lead to a gross abuse of power by who are in charge of the investigation. The case of legal and factual malice on the part of the Respondent- Directorate in proceeding with the investigation in question has been made out.

25. For the aforesaid reasons, issue notice. Mr. Sharma, learned Special PP for ED accepts notice, seeks and is granted 4 weeks to file a reply/ status report.

26. In the meantime, the petitioner shall join investigation but shall not be arrested pursuant to the FIR No. 48/2022 dated 17.08.2022 till the next date of hearing.

27. The observations made in this order are only for the purposes of issuing notice and shall not come in the way while passing the final order.

28. List on 05.12.2022.

JASMEET SINGH, J AUGUST 25, 2022 / (MS) Click here to check corrigendum, if any